

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Abigail Shuster	Team: Squad #15	CCRB Case #: 201603799	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 04/26/2016 2:00 PM	Location of Incident: In front of § 87(2)(b)	18 Mo. SOL 10/26/2017	Precinct: 30		
Date/Time CV Reported Tue, 04/26/2016 6:49 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 05/02/2016 11:10 AM		
Complainant/Victim	Type	Home Address			
Witness(es)	Home Address				
Subject Officer(s)	Shield	TaxID	Command		
1. POM Shaun Bertin	11078	952462	030 PCT		
Witness Officer(s)	Shield No	Tax No	Cmd Name		
1. POM Gregory Santana	26386	945398	030 PCT		
Officer(s)	Allegation			Investigator Recommendation	
A . POM Shaun Bertin	Abuse: Police Officer Shaun Bertin refused to provide his shield number to § 87(2)(b)			A . Unsubstantiated	

Case Summary

On March 26, 2016, at approximately 2:00pm, § 87(2)(b) was pulled over in front of § 87(2)(b) in Manhattan by PO Gregory Santana and PO Shaun Bertin of the 30th Precinct. During the interaction, § 87(2)(b) asked PO Bertin for his shield number and PO Bertin allegedly walked away in response (**Allegation A**). PO Santana then summonsed § 87(2)(b) for § 87(2)(b).

§ 87(2)(b) recorded parts of the vehicle stop on his cell phone, the footage does not capture any part of this allegation.

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- On May 27, 2016, § 87(2)(b) rejected mediation § 87(2)(b).
- On July 26, 2016, the Office of the New York City Comptroller confirmed that not notices of claim were filed reading this incident (BR 1).
- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This was the first complaint filed by § 87(2)(b) § 87(2)(b).
- During PO Bertin's 4-year tenure with the NYPD, this is his first CCRB complaint.

Findings and Recommendations

Allegation A – Abuse of Authority: Police Officer Shaun Bertin refused to provide his shield number to § 87(2)(b)

It is undisputed that PO Bertin and PO Santana stopped § 87(2)(b)'s vehicle, that they each approached his vehicle on foot, and that PO Santana issued him a § 87(2)(b) summons.

§ 87(2)(g)

§ 87(2)(b) reported that he obtained PO Santana's shield number off of his nameplate. He testified to asking PO Bertin for his shield number, and alleged that PO Bertin walked away after § 87(2)(b) asked without verbally responding in any manner. § 87(2)(b) further stated that he believes PO Bertin heard his request because the area was quiet and § 87(2)(b) himself speaks very loudly (BR 4).

§ 87(2)(b) telephoned his mother, § 87(2)(b) to ask that she come down from her nearby building, during the incident. § 87(2)(b) provided an unverified telephone statement on August

9, 2016, during which she stated that she was present during the incident but unable to hear any conversation that occurred between her son and the officers (BR 7).

PO Bertin testified that he had no conversation with § 87(2)(b) at all during the incident. He denied that § 87(2)(b) ever requested his shield number. PO Bertin testified to hearing § 87(2)(b) ask PO Santana for his name and/or badge number, but could not reply whether PO Santana provided the information to him (BR 5).

PO Santana could not recall whether § 87(2)(b) asked PO Bertin for his shield number, and could not recall whether PO Bertin and § 87(2)(b) had any interaction whatsoever (BR 6).

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **unsubstantiated**.

Squad: 15

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date